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California's AB 1217 Could Supersede Costly Outdoor Dining Permits Proposed by Municipalities

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Legislation would preempt local ordinances and preserve regulatory flexibility for struggling neighborhood restaurants

By Sam Catanzaro

A new bill proposed by California Assemblymember Jesse Gabriel (D-Woodland Hills) could offer relief to restaurants struggling to maintain outdoor dining amid new fees being imposed and proposed by municipalities including Santa Monica and Los Angeles.

"Neighborhood restaurants are the backbone of communities across California, but too many are barely hanging on by a thread," said Assemblymember Jesse Gabriel. "Outdoor dining has been a critical lifeline that has helped these beloved establishments keep their doors open during these challenging times."

Assembly Bill 1217 would extend the benefits of state and local programs, such as L.A. Al Fresco, which streamlined the application process and waived fees for restaurants and bars that had to move dining outside due to indoor seating restrictions. The proposed bill would supersede city and county ordinances that require new permit applications and fees for restaurants hoping to maintain their Al Fresco program setups, offering much-needed relief to the industry.

"Outdoor dining has become an important lifeline for restaurants, and it's something that we have all come to love and enjoy," stated Madelyn Alfano, Past Chair of the California Restaurant Association Board of Directors and owner of Maria's Italian Kitchen, a neighborhood Italian restaurant locations across Los Angeles including in Brentwood and Westwood. "Many restaurant owners have invested lots of money to build beautiful outdoor dining spaces to increase their capacity for private events and recoup some of their losses from these difficult past few years. AB 1217 will help sustain this crucial tool and allow local restaurants such as my own to continue to provide delicious meals for our communities."

This new bill builds on a previous measure, AB 61, authored by Gabriel and signed into law by Governor Newsom in 2021. AB 61 allowed restaurants to have more regulatory flexibility on various issues, such as outdoor food preparation and service, using their own spaces to increase outdoor dining capacity, and serving alcohol on outdoor premises.

If passed, the proposed bill would extend current temporary relief measures, such as conditional use permits for outdoor dining expansion and parklet conversion to al fresco seating, offering more permanence to the restaurant industry amid uncertainties and additional pandemic-induced operating costs.

AB 1217 comes at a crucial time as the City of Los Angeles has proposed a new ordinance that will introduce new restrictions and fees on outdoor dining, requiring restaurants to apply for expensive new permits for existing patios. Should AB 1217 be passed, it would preempt this ordinance and help local restaurants avoid costly and confusing red tape to keep their outdoor dining operations open. Similarly, restaurants in Santa Monica have been pushing back against the new permitting officials have implemented in the city.

"It definitely feels like it's the end of an era right now," said Brian Bornemann, chef and founder of sustainable seafood restaurant Crudo e Nudo on Main Street an interview with the Santa Monica Mirror last month. "It's the opposite to helping small businesses. They're trying to penalize you at all costs."

Although the bill is in its nascent stages, Gabriel expects a hearing in the coming weeks. Should the bill pass the assembly, it could be moved to Gov. Gavin Newsom around September, with the governor determining whether to sign the bill and others into law during the fall.

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